Software-as-a-Service Subscription Agreement

Agreement No. SYN-COST-002

between **Brightwater Labs s.r.o.**, Vinohradska 2133/112, 130 00 Prague 3, Czech Republic, company ID 19283746 (the "Customer")

and **Lumen Cloud Services Ltd**, 4 Grand Canal Quay, Dublin 2, Ireland, company number 712398 (the "Provider")

1. Definitions and precedence

1.1 Capitalised terms have the meaning given in this clause. "Services" means the hosted analytics platform described in Schedule 1.

1.2 If there is a conflict between the body of this Agreement and a Schedule, the body of this Agreement prevails.

2. Services

2.1 The Provider shall make the Services available to the Customer's authorised users in accordance with Schedule 1 and the service levels in Schedule 2.

2.2 The Provider may update the Services provided that the functionality is not materially reduced.

3. Term and renewal

3.1 This Agreement starts on 15 January 2026 and continues for an initial term of thirty-six (36) months, ending on 14 January 2029.

3.2 After the initial term this Agreement renews automatically for successive periods of twelve (12) months unless either party gives written notice of non-renewal at least ninety (90) days before the end of the then-current term.

4. Fees and payment

4.1 The Customer shall pay an annual subscription fee of EUR 48,000 (forty-eight thousand euros), invoiced annually in advance.

4.2 Invoices are payable within thirty (30) days of the invoice date.

4.3 Late payments bear interest at eight (8) percentage points above the European Central Bank main refinancing rate.

4.4 From the second contract year the Provider may adjust the fee once per year in line with the Irish Consumer Price Index, capped at five percent (5 %) per adjustment.

5. Customer data

5.1 The Customer retains all rights in Customer Data. The Provider shall process Customer Data only to provide the Services.

5.2 On termination the Provider shall make Customer Data available for export for thirty (30) days and then delete it.

6. Termination

6.1 Either party may terminate this Agreement with immediate effect by written notice if the other party commits a material breach that is not remedied within thirty (30) days of notice.

6.2 The Customer may not terminate this Agreement for convenience during the initial term.

6.3 Either party may terminate if the other party undergoes a change of control in favour of a direct competitor, by giving sixty (60) days' notice.

7. Intellectual property

7.1 The Provider owns all intellectual property rights in the Services. The Customer receives a non-exclusive, non-transferable right to use the Services during the term.

8. Indemnities

8.1 The Provider shall indemnify the Customer against third-party claims that the Services infringe intellectual property rights.

9. Limitation of liability

9.1 Each party's total liability under this Agreement in any contract year is limited to the fees paid or payable in the twelve (12) months preceding the event giving rise to the claim.

9.2 Neither party is liable for indirect or consequential loss, loss of profit or loss of data, except for liability that cannot be limited by law.

10. Confidentiality

10.1 Each party shall keep the other party's Confidential Information confidential and use it only for the purposes of this Agreement.

10.2 The obligations in this clause 10 survive termination or expiry of this Agreement for five (5) years.

11. Data protection

11.1 Where the Supplier processes personal data on behalf of the Customer, the parties shall enter into the data processing agreement set out in the applicable schedule, which complies with Article 28 of Regulation (EU) 2016/679.

12. Assignment

12.1 Neither party may assign or transfer this Agreement without the prior written consent of the other party, except to an affiliate in connection with a reorganisation.

13. Notices

13.1 Notices under this Agreement must be in writing and delivered by hand, by courier or by email with confirmation of receipt to the addresses stated above.

14. Governing law and disputes

14.1 This Agreement is governed by the laws of Ireland.

14.2 The courts of Dublin, Ireland have exclusive jurisdiction.

Schedule 1 - Service description

The Services comprise the hosted analytics platform, the reporting API, standard connectors for ERP and CRM systems, and up to 250 named users.

Data is hosted in the European Union (Dublin and Amsterdam regions). Backups are taken daily and kept for 35 days.

Schedule 2 - Service levels

Service	Availability target	Service credit
Production platform	99.9 % monthly	5 % of monthly fee per 0.1 % below target
API endpoints	99.5 % monthly	3 % of monthly fee per 0.5 % below target
Support (P1)	Response in 1 hour	None
Support (P2)	Response in 4 business hours	None
Support (P3)	Response in 2 business days	None

Signatures

Signed on 9 January 2026.

For Brightwater Labs s.r.o.	For Lumen Cloud Services Ltd
Name: Jana Novakova, Managing Director	Name: Tomas Berger, Director
Signature: /signed/	Signature: /signed/